

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: August 16, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

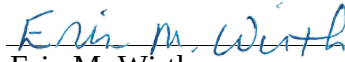
On August 13, 2021, the parties filed a joint status report and proposed amended discovery schedule ("JSR 3"). The parties request additional time, including to complete document requests, to review documents prior to starting depositions, and to complete depositions. The parties propose a revised schedule that would move the due date for motions for summary decision from December 20, 2021, to March 24, 2022.

The parties have been diligently working through discovery and outline their progress. "Complainant has produced 31,252 pages of documents, Respondents have produced 73,379 pages of documents, and non-party motor carriers have produced 351,952 pages of documents, for a total of 456,583 pages of documents, which is a small percentage of the millions of pages that were reviewed electronically and manually in order to identify responsive documents for production." JSR 3 at 4.

The schedule proposed by the parties has been modified to complete the initial stage of discovery and filing of motions by February 22, 2022. The Commission recently extended the date to complete this proceeding to February 24, 2022, and this modified schedule completes significant portions of the proceeding by that date. The parties are encouraged to prioritize their discovery and depositions and to utilize stipulations to reduce the burden on parties and non-parties.

The parties provide good cause to amend the schedule and should continue working together as efficiently as possible. Accordingly, it is hereby **ORDERED** that the parties abide by the following second amended schedule:

September 3, 2021	Complete document production
September 20, 2021	Depositions begin
November 18, 2021	Complete fact depositions
December 7, 2021	Joint stipulation of facts
December 16, 2021	Disclosure of initial expert reports
January 10, 2022	Disclosure of rebuttal expert reports, if necessary
January 24, 2022	Expert discovery cut-off
February 7, 2022	Completion of discovery
February 22, 2022	Motions for summary decision


Erin M. Wirth
Chief Administrative Law Judge